

should make out a very strong case, in order to induce the Court to believe that such was the agreement. As if a person, residing at a distance abroad, absolutely refused to treat with the Government, but chose rather to rely upon the personal security of the governor, who was upon the spot, and who was willing to treat upon those conditions. But, they contended in this case that the defendant had acted avowedly as the agent of Government, and did not intend to make himself personally responsible.

But considering this even as a common transaction between private parties, apart from public considerations, which would weigh in this case; the plain question would be, to whom was the credit given? It appears upon the face of it not to have been given to the defendant. The goods furnished were not for his use, and so the plaintiff knew. The defendant's letter to the plaintiff, when he was appointed to the post, expressly mentions that they were for the use of the Crown. The orders given by the defendant were in the quality of governor, and therefore the plaintiff must be taken to have contracted with Government. It is no answer to say, that the bills were drawn on the defendant, for that is the common course of business: and the letter from Mathews, the defendant's secretary, speaks of an application to the Treasury, which shews that it could not be considered as a personal demand on the defendant.

Supposing the defendant in the situation of a private steward, if it be notorious that the orders are given by him for his employer, and that he acts merely in the capacity of an agent, that is sufficient to shew the nature of the transaction, and to whom the credit has really been given.

In ordinary dealings, where it is a matter of doubt to whom the credit has been given, the question has frequently been decided by having recourse to the creditor's books, or by producing [178] his bills, and seeing whom he himself has debited. In this instance the plaintiff has debited Government.

Another circumstance is here disclosed, which decides as to whom the plaintiff gave the credit; for he first applied for payment to the Treasury, and on their refusal had recourse to the defendant, which manifestly proves that he considered Government as his debtor.

They then mentioned the case of *General Burgoyne*, against whom a bill was filed in Chancery for a specific performance of a contract for the supply of artillery carriages in America. Lord Thurlow, Chancellor, said, that there was no colour for the demand as against the defendant, who acted only as an agent for Government, and dismissed the bill with costs. His Lordship also made the same observation which the learned Judge made in this cause, that the plaintiff had his remedy against the Crown by petition of right.

Cowper, Law, and Adam, in support of the rule, contended that the evidence which was produced at the trial was such as ought to have been left to the jury to determine, whether the defendant had not made himself personally liable.

In general, a commanding officer is not answerable for stores and other articles furnished notoriously for the use of Government, but there is no doubt that he may become so by his own conduct. Here the plaintiff was directed by the defendant to obey the orders of Lieutenant-Governor Sinclair. Every article which he furnished was in obedience to Sinclair's commands; and Sinclair himself was instructed to draw bills for the payment of those articles, not on the Government, or on any official paymaster, which would have afforded a strong presumption in discharge of the defendant's liability, but his orders were to draw on the defendant himself.

The partial payment, which was afterwards made, was under the special directions of the defendant, who, throughout the whole transaction, exercised his own discretion as to which part of the charges should be allowed, or rejected. The defendant's own conduct therefore has made him personally liable.

Distance of place and situation might also have been a reason with the plaintiff for giving the defendant personal credit; for the parties being removed so far from the seat of Government at [179] home, there was no other person to whom the plaintiff would so naturally look for payment as the defendant himself.

The production of the letters at the trial was an additional reason for leaving the question to the jury, whose province it was to determine the import of them.

In an action brought against General Burgoyne to recover a sum of money due to the plaintiff as provost marshal, the defendant having promised that he should be paid at the same rate as the provost marshal under General Howe had been, a similar